

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Civil Law and Motion Tentative Rulings
Hon. Stephanie L. Jamieson
Courtroom 8

627 W. 21st Street, Merced

Friday, September 11, 2026
8:15 a.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

1. You must call (209) 725-4240 to notify the court of your intent to appear.
2. You must give notice to all other parties before 4:00 p.m. of your intent to appear.

Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

Case No.	Title / Description
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22CV-00810	Iraj Safapour, et al. vs Tarlochan Sohal, et al.
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Motion for Issuance of an Order to Show Cause Re: Contempt

Plaintiff's request for issuance of an order to show cause re: contempt is GRANTED. A prima facie showing has been made that the preliminary injunction issued by this court has been violated, requiring an evidentiary hearing for determination of whether a contempt finding is appropriate. Defendants are ordered to appear on October 25, 2026, at 8:15 a.m. in Courtroom 8 of the above-entitled court and show cause why they should not be found in contempt of court for violations of the preliminary injunction issued by this Court on February 18, 2026. It is specifically alleged that Defendants have violated the injunction by allowing agents, employees, customers, or invitees to park, stop, or stage commercial trucks or vehicles on or within the area of easement across Plaintiffs' property, beyond that which is reasonably necessary for ingress and egress.

Order to Show Cause Re: Dismissal - Notice of Settlement

Having reviewed the declaration of Samvel Setyan, filed September 4, 2026, as well as the court's file for this matter, the OSC re: Dismissal – Notice of Settlement is VACATED.

No notice of settlement has been filed into this case, despite counsel verbally advising the court of a settlement agreement more than a year ago, on April 8, 2025. The Court has held three prior hearings on the OSC re: Dismissal – Notice of Settlement without any progress from the parties. The Court's patience with the parties' non-compliance with procedural requirements has expired. Once a settlement has actually been reached, Plaintiff is ordered to file a Notice of Settlement on mandatory form CM-200 with this court indicating the date of settlement and a timeline for dismissal.

This matter will be calendared for a case management conference November 30, 2026, at 10:00 a.m. in Courtroom 8. If no notice of settlement is filed prior to that date, the parties should arrive prepared to select trial dates, as the five-year deadline to bring this case to trial expires May 24, 2027.

Motion to Compel Discovery Responses and For Monetary Sanctions Against Plaintiff

Defendant's motion to compel discovery responses to Form Interrogatories, Special Interrogatories, and Requests for Production is GRANTED.

Plaintiff has failed to provide timely responses and objections are waived. Plaintiff shall serve code-compliant, verified responses, without objections, to Form Interrogatories, Special Interrogatories, and Requests for Production within ten (10) days of the date of service of this order.

The request for monetary sanctions is GRANTED. Monetary sanctions in the amount of \$250 are to be paid by Plaintiff to Defendant within thirty (30) days of this Court's order.

The Court will sign the order lodged on August 13, 2026.

Motion for Order Deeming Facts Admitted and For Monetary Sanctions Against Plaintiff

Defendant's motion to deem true the matters contained in properly served Requests for Admission is GRANTED. Plaintiffs failed to provide timely responses to Requests for Admission and objections are waived.

The matters specified in Defendant's Requests for Admission are deemed true, unless Plaintiff serves, before the hearing, a proposed response to the requests for admission, that is in substantial compliance with Code of Civil Procedure § 2033.220.

The request for monetary sanctions is GRANTED. Monetary sanctions in the amount of \$250 are to be paid by Plaintiff to Defendant within thirty (30) days of this Court's order.